

****27.06.2023****

****A New Sanction for Violation of GDPR****

The National Supervisory Authority has completed an investigation in May of the current year regarding the operator Farmacia Ardealul SRL, during which it found violations of the provisions of Article 32 paragraph (1) letters b) and d) and paragraph (2) of the General Data Protection Regulation. As such, the company Farmacia Ardealul SRL has been fined in the amount of 12,424 lei, equivalent to 2,500 EURO.

The investigation was initiated following the operator's notification of a personal data security breach under the General Data Protection Regulation.

During the investigation, it was found that the breach of data processing security occurred due to the unauthorized installation of malware on the operator's website.

This situation led to a violation of the confidentiality of personal data (banking data) of a significant number of clients as a result of the unauthorized installation of a fictitious form for collecting banking data on the operator's website.

Thus, the operator Farmacia Ardealul SRL was sanctioned with a fine for violating the provisions of Article 32 paragraph (1) letters b) and d) and paragraph (2) of the General Data Protection Regulation, as it did not implement appropriate technical and organizational measures to ensure a level of security corresponding to the risk presented by processing.

Additionally, the operator was also subjected to the corrective measure of implementing a plan that includes a mechanism for testing, scanning, evaluating, and periodically assessing the security of all IT systems of the operator, including its website.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****